



U.S. Department
of Transportation

East Building, PHH-30
1200 New Jersey Avenue S.E.
Washington, D.C. 20590

**Pipeline and Hazardous
Materials Safety Administration**

DOT-SP 16278

EXPIRATION DATE: November 30, 2014

1. GRANTEE: Stericycle, Inc.
Lake Forest, IL
2. PURPOSE AND LIMITATION:
 - a. This emergency special permit authorizes the transportation in commerce of certain Ebola contaminated medical waste for autoclaving or incineration. This special permit provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein. The most recent revision supersedes all previous revisions.
 - b. The safety analyses performed in development of this special permit only considered the hazards and risks associated with transportation in commerce. The safety analyses did not consider the hazards and risks associated with consumer use, use as a component of a transport vehicle or other device, or other uses not associated with transportation in commerce.
 - c. No party status will be granted to this special permit.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR § 173.196(a) in that alternative packaging is authorized.
5. BASIS: This emergency special permit is based on the application of Stericycle, Inc. dated October 7, 2014, submitted in accordance with § 107.117 and a PHMSA determination that the special permit is in the public interest and that it is necessary to prevent significant injury to persons or property.

6. HAZARDOUS MATERIALS (49 CFR § 172.101):

Hazardous Materials Description			
Proper shipping name	Hazard Class/ Division	Identification Number	Packing Group
Infectious substances, affecting humans	6.2	UN2814	N/A

7. SAFETY CONTROL MEASURES:a. LIMITATIONS ON SOLID MATERIALS THAT HAVE BEEN CONTAMINATED WITH THE EBOLA VIRUS:

(1) This special permit authorizes the transportation in commerce of materials that have been contaminated with or are suspected to have been contaminated with the Ebola virus in the packaging system described below.

(2) Inner packagings must be placed into the outer packagings in such a manner as to minimize the risk of damage to the packagings.

b. PACKAGING - The prescribed packagings are as described below:

(1) A combination packagings consisting of these components:

(i) Outer Packaging: A 95 gallon UN1H2 drum tested and certified to the PG II level for solids. The drum must be certified with a maximum gross mass of 300kg or greater.

(ii) Inner packaging system: The inner packaging system is a combination package consisting of the following components:

(A) A 55 gallon UN1H2 drum tested and certified to the PG II level for solids containing no more than 100 kg of material.

(B) Three inner plastic film bags which meet the requirements below:

October 8, 2014

(I) A minimum film thickness of 1.5 mils (0.0015 inch); and,

(II) Is marked and certified by its manufacturer as having passed:

(1) The tests prescribed for tear resistance in ASTM D 1922, "Standard Test Method for Propagation Tear Resistance of Plastic Film and Thin Sheeting by Pendulum Method". The film bag must meet a tearing resistance of 480 grams in both the parallel and perpendicular planes with respect to the length of the bag; and

(2) The tests prescribed for impact resistance in ASTM D 1709, "Standard Test Methods for Impact Resistance of Plastic Film by the Free-Falling Dart Method". The film bag must meet an impact resistance of 165 grams.

(III) Each plastic film bag must be sealed and securely closed with tape to prevent the release of any material from the bag if inverted.

(IV) All packagings must be compatible with the EPA-registered disinfectant that is recommended by the Centers for Disease Control and Prevention for use as a disinfectant for the Ebola virus.

(C) All UN Standard inner and outer packagings must be closed in accordance with the manufacturers' instructions.

(2) A maximum of eight UN1H2 drums meeting the requirements of paragraph 7.b.(1)(ii)(A) above containing the waste from the entertainment center not packaged in the specified inner film bags may be transported when packaged in the 95 gallon UN1H2 drums.

(3) A maximum of seven packages containing items such as a television, metal chairs and box spring that cannot be

October 8, 2014

placed in inner film bags and in the 55 gallon UN1H2 drum may be transported when disinfected and packaged as follows:

(i) Decontaminate the item with bleach in accordance with Centers for Disease Control guidance. Then wipe with a minimum of 3% hydrogen peroxide solution.

(ii) Enclose the item in a commercial king sized mattress bag and securely seal all seams with tape to ensure no material can escape. Disinfect the outer surface of each bag with an EPA-registered disinfectant that is recommended by the Centers for Disease Control and Prevention for use as a disinfectant for the Ebola virus prior to inserting into the next bag. Repeat this process for three bags.

(iii) Place the bags onto a 6 mil polyethylene sheet and completely enclose the item. Securely seal all seams with tape so material cannot escape and disinfect the outer surface of the sheet with an EPA-registered disinfectant that is recommended by the Centers for Disease Control and Prevention for use as a disinfectant for the Ebola virus. Repeat this process with a second sheet.

(iv) If practicable, place the wrapped item into the 95 gallon UN1H2 drum in accordance with the applicable provisions on this special permit.

c. OPERATIONAL CONTROLS

(1) Only vehicles operated by Stericycle, Inc. may be used to transport materials under the terms of this special permit. Transportation may only be made from locations within Texas as directed by State or local authorities, after notifying PHMSA, to the nearest appropriate disposal facility available at the time the material is offered for transportation without additional loading of the vehicle.

(2) Prior to closing the primary inner plastic film bag, the waste material must be treated with an EPA-registered disinfectant that is recommended by the Centers for Disease Control and Prevention for use as a disinfectant for the Ebola virus.

(3) After the primary inner plastic film bag is sealed, the exterior surface of the bag must be treated with an EPA-

October 8, 2014

registered disinfectant that is recommended by the Centers for Disease Control and Prevention for use as a disinfectant for the Ebola virus.

(4) The primary inner plastic film bag must be placed into a secondary plastic film bag meeting the requirements specified in paragraphs 7.b.(1)(ii)(B)(I), (II), (III) and (IV) of this permit. After the second plastic film bag is sealed, the exterior surface must be treated with an EPA-registered disinfectant that is recommended by the Centers for Disease Control and Prevention for use as a disinfectant for the Ebola virus.

(5) The sealed primary and secondary inner packagings must then be placed into a third plastic film bag meeting the requirements specified in paragraphs 7.b.(2)(ii)(A), (B) and (C) of this permit. After the third plastic film bag is sealed, the exterior surface must be treated with an EPA-registered disinfectant that is recommended by the Centers for Disease Control and Prevention for use as a disinfectant for the Ebola virus.

(6) The sealed plastic film bags are then placed into the 55 gallon UN1H2 drum.

(7) The sealed 55 gallon UN1H2 drum must be treated with an EPA-registered disinfectant that is recommended by the Centers for Disease Control and Prevention for use as a disinfectant for the Ebola virus before being placed into the outer 95 gallon UN1H2 drum.

(8) The outer 95 gallon UN1H2 drum must remain closed except when being filled with inner packagings containing the material authorized by this special permit.

(9) The exterior of the 95 gallon salvage drum must be treated with an EPA-registered disinfectant that is recommended by the Centers for Disease Control and Prevention for use as a disinfectant for the Ebola virus prior to loading in the transport vehicle.

(10) Before loading the package into a transport vehicle, the grantee must ensure that the package is closed and sealed to prevent the release of any material during transportation.

October 8, 2014

(11) Loading and unloading the vehicle must be performed using manual means to the maximum extent practicable. Fork trucks or other mechanicals means may not be used for loading or unloading the vehicle unless no other option exists.

(12) While in transportation, the doors on the motor vehicle being used to transport the material authorized by this special permit must be closed and locked except when the vehicle is being loaded or unloaded.

(13) Prior to transportation, the carrier must perform an external visual inspection of the transport vehicle to determine that it is closed and free of leakage.

(14) The carrier may only transport the vehicle loaded with the material to a final destination that is authorized by applicable laws for treatment or disposal of such materials, without unnecessary delay from the time the carrier's motor vehicle leaves the site of origin.

(15) The carrier must have a written spill response plan that includes provisions for the decontamination of spilled materials and for personal protective equipment to be carried on the vehicle and used to protect its employees from contact with infectious materials in any form.

(16) The carrier must respond to any release or suspected release from a package that occurs during transportation. The response must include complete removal of any spilled material and decontamination of the release site, vehicle surfaces and external surfaces of the package involved.

(17) Each motor vehicle used under the terms of this permit must be decontaminated in accordance with applicable federal, state and local laws.

(18) Each commercial motor vehicle and driver involved in this operation must be made available for a CVSA Level I hazardous materials inspection prior to transport. Should any violations of the CVSA North American Standard Out-of-Service Criteria (2014 edition) be discovered during the inspection, the violation(s) must be corrected prior to transporting hazardous materials under this special permit.

8. SPECIAL PROVISIONS: A current copy of this special permit must be maintained at each location where the packages are

offered for transportation.

9. MODES OF TRANSPORTATION AUTHORIZED: Motor Vehicle.
10. MODAL REQUIREMENTS: A current copy of this special permit must be carried aboard each motor vehicle used to transport packages covered by this special permit. The carrier shall use hazardous materials routes where designated and practicable.
11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:
 - o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
 - o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.
 - o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this special permit, including display of its number, when this special permit has expired or is otherwise no longer in effect.

Title 49 of the United States Code, Section 5117 (a)(2) now authorizes a special permit (formally an "exemption") to be granted up to two years for new special permits and up to four years for renewals.

12. REPORTING REQUIREMENTS: Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 - Immediate notice of certain hazardous materials incidents and 171.16 - Detailed hazardous

October 8, 2014

materials incident reports. In addition, the grantee(s) of this special permit must notify the Associate Administrator for Hazardous Materials Safety, in writing, of any incident involving a package, shipment or operation conducted under terms of this special permit.

Issued in Washington, D.C.:

A handwritten signature in black ink, appearing to read 'B. P. A.', is written over a horizontal line.

for Dr. Magdy El-Sibaie
Associate Administrator for Hazardous Materials Safety

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Material Safety Administration, U.S. Department of Transportation, East Building PHH-30, 1200 New Jersey Avenue, Southeast, Washington, D.C. 20590.

Copies of this special permit may be obtained by accessing the Hazardous Materials Safety Homepage at http://hazmat.dot.gov/sp_app/special_permits/spec_perm_index.htm Photo reproductions and legible reductions of this special permit are permitted. Any alteration of this special permit is prohibited.

PO: BURGER